

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIRCUIT BENCH AT KOLHAPUR
CIVIL APPELLATE JURISDICTION

WRIT PETITION NO. 1852 OF 2022

Nitin Anantkumar Patil.	]	
Aged 44 years, Occ. Agriculturist	]	
Residing at post Malgaon, Tal. Miraj	]	
District Sangli	]	...Petitioner.

Versus

1.	The State of Maharashtra	]	
2.	The District Collector, Sangli	]	
	Collectors Office, Sangli.	]	
3.	The Competent Authority and	]	
	Sub-Divisional Office and Sub-Divisional	]	
	Magistrate, Miraj Division	]	
	Division, having his office at Miraj	]	
	Taluka Miraj, District Sangli.	]	
4.	Dy. Collector (Land Acquisition)	]	
	Sangli, Office of Collector of Sangli	]	
	District Sangli.	]	
5.	The Sub-Divisional Irrigation officer	]	
	Zilla Parishad, Miraj Sub-Division	]	
	Panchayat Samiti, Miraj	]	...Respondents.

Mr. Shridhar V. Kelkar for the Petitioner.

Mr. A. P. Vanarase, AGP for the Respondent-State (Respondent No. 1 to 4).

Mr. Pankaj P. Deokar for the Respondent No. 5.

**Coram : Madhav J. Jamdar &
Pravin S. Patil, JJ.**

Date : April 9, 2026.

Judgment (Per, Madhav J. Jamdar, J.):

1. Heard Mr. Kelkar, learned Counsel appearing for the Petitioner,
Mr. Deokar, learned Counsel appearing for the Respondent No.5-Zilla

Parisahad, Sangli and Mr. Vanarase, learned AGP for the Respondent-State (Respondent Nos.1 to 4).

2. By the present writ petition filed under Article 226 of the Constitution of India, Petitioner has sought the relief of quashing and setting aside the orders/letters dated 20th November 2020 (Exhibit- "C" / page 35) and 8th June 2021 (Exhibit-"K"/page 59) issued by the Competent Authority, Land Acquisition @ Sub Divisional Officer, Miraj Division, Miraj refusing to pay compensation to the Petitioner in respect of his land acquired from land out of land being Survey No.1576/B/2 situated at village Malgaon, taluka Miraj, district Sangli.

3. It is the submission of Mr. Kelkar, learned Counsel appearing for the Petitioner that Petitioner is the owner of land bearing Survey No.1576/B/2 situated at village Malgaon, taluka Miraj, district Sangli, totally admeasuring 2-Hectares and 83-Ares and out of same, land acquired is 9,600 sq. meters, i.e., about 1- Hectare. He submitted that the said land has been acquired by the competent authority-SDO, Miraj @ Acquisition Officer, for the purpose of construction of National Highway No.166 by award dated 19th November 2018, however, the compensation has not been paid to the Petitioner on the ground that the Tahsildar has already acquired the said land for percolation tank-village lake.

4. It is the submission of Mr. Vanarase, learned AGP that the said

ground has been raised on the basis of order passed by the Tahsildar dated 11th November 1976 and on the basis of Mutation Entry No. 444 dated 5th October 1978 effected by the revenue authorities.

5. To substantiate his contention Mr. Vanarase, learned AGP has relied on Mutation Entry No. 444 dated 1st July 1978. The said Mutation Entry reads thus :

“तारीख 1.7.78 हुकुमावरुन म. तहसीलदार साहेब ता. मिरज यांचेकडील हुकुम नंबर महसूल-कावी 1357 तारीख 11.11.76 चे हुकुमाप्रमाणे गाव तलाव – पाझर तलाव यासाठी जमीन घेतलेल्या आहेत. त्यांचा आकार कमी केला तो खालील प्रमाणे.”

6. However, at the outset it is necessary to observe that there is nothing on record to indicate under which provision of law, the Tahsildar has passed the said order. There is also nothing on record to substantiate that land of the Petitioner has been acquired and compensation has been paid to the Petitioner or his predecessor-in-title, i.e., his father / grand-father, etc. Thus, there is nothing on record to show that the land has been acquired by Tahsildar by following the due process of law. Further, there is no record to show that any compensation has been paid to the Petitioner for acquisition of his land.

7. Thus, except said Mutation Entry No. 444 dated 1st July 1978, there is no other evidence of said acquisition. Even said orders dated 11th November 1976 and 1st July 1978 of Tahasildar are not produced on record.

8. In the above background of the matter, it is relevant to note the scheme of the Land Acquisition Act, 1894 insofar as acquisition of the land is concerned. The same is as follows :

(I) Section 4 is regarding publication of preliminary notification and provides that whenever it appears to the appropriate Government the land in any locality is needed or is likely to be needed for any public purpose, a notification to that effect shall be published in the Official Gazette and in two daily newspapers and public notice of the substance of such notification to be given at convenient places in the said locality.

(ii) Sub-Section (2) of Section 4 makes elaborate provision regarding various aspects including survey, boundaries of the land, etc.

(iii) Section 5-A provides for hearing of objections to the acquisition raised by any person interested in any land.

(iv) Section 6 provides that when the appropriate Government is satisfied, after considering the report, if any, made under Section 5-A, sub-section (2), that any particular land is needed for a public purpose, a declaration shall be made to that effect. Every such declaration shall be published in the Official Gazette, and in two daily newspapers circulating in the locality and the Collector shall cause public notice of the substance of such declaration to be given at convenient places in the said locality. The said declaration shall be conclusive evidence that the land is needed for a public purpose and after making such

declaration, the appropriate Government may acquire the land in manner hereinafter appearing.

(v) The Sections 4 to 6 are concerning taking decision by the appropriate Government to acquire the land for public purpose.

(vi) Section 9 provides that the Collector shall then cause public notice to be given at convenient places on or near the land to be taken, stating that the Government intends to take possession of the land, and that claims to compensations for all interests in such land may be made to him. The Collector shall also serve notice to the same effect on the occupier (if any) of such land and *inter alia* on all such persons known or believed to be interested therein.

(vii) Section 11 provides that Collector shall make an award after conducting the enquiry. Such award shall mention the true owner of the land, the compensation to be paid and apportionment of the compensation among all the interested persons. Such award shall be filed in the Collector's office and shall, except as hereinafter provided, be final and conclusive evidence, as between the Collector and the persons interested, whether they have respectively appeared before the Collector or not, of the true area and value of the land, and the apportionment of the compensation among the persons interested.

(viii) When the Collector has made an award under Section 11 or under Section 16 power is given to the Collector to take possession of the

land, which shall thereupon vest absolutely in the Government, free from all encumbrances.

9. Thus, elaborate provisions are made under the Land Acquisition Act, 1894 *inter alia* concerning the manner in which the land is to be acquired. There is nothing on record which will indicate that the Petitioner's land is acquired by following the provisions of law. Admittedly, there is no notification issued under Section 4 of the Land Acquisition Act, 1894 or declaration under Section 6 and Award published under Section 11 of the Land Acquisition Act, 1894.

10. It is the submission of learned AGP that during that period Maharashtra was affected by severe drought and therefore voluntarily petitioner's predecessor-in-title handed over possession of the subject land for construction of percolation tank-village lake. However, there is no documentary proof regarding same. In any case, it is very clear that the said land has not been acquired by following the due procedure of law.

11. In view of the contention raised that due to severe drought urgent steps were taken, it is necessary to set out Section 17 of the Land Acquisition Act regarding special powers in cases of urgency. Section 17 is as under :

“(1) In cases of urgency, whenever the appropriate Government so directs, the Collector, though no such award has been made, may, on the expiration of fifteen

days from the publication of the notice mentioned in Section 9, sub-section (1), take possession of any land needed for a public purpose. Such land shall thereupon vest absolutely in the Government, free from all encumbrances.

(2) Whenever, owing to any sudden change in the channel of any navigable river or other unforeseen emergency, it becomes necessary for any Railway Administration to acquire the immediate possession of any land for the maintenance of their traffic or for the purpose of making thereon a river-side or ghat station, or of providing convenient connection with or access to any such station, or the appropriate Government considers it necessary to acquire the immediate possession of any land for the purpose of maintaining any structure or system pertaining to irrigation, water supply, drainage, road communication or electricity, the Collector may, immediately after the publication of the notice mentioned in sub-section (1) and with the previous sanction of the appropriate Government, enter upon and take possession of such land, which shall thereupon vest absolutely in the Government free from all encumbrances:

Provided that the Collector shall not take possession of any building or part of a building under this sub-section without giving to the occupier thereof at least forty-eight hours' notice of his intention so to do, or such longer notice as may be reasonably sufficient to enable such occupier to remove his movable property from such building without unnecessary inconvenience.

(3) In every case under either of the proceeding sub-sections the Collector shall at the time of taking possession offer to the persons interested, compensation for the standing crops and trees (if any) on such land and for any other damage sustained by them caused by such sudden dispossession and not excepted in Section 24; and, in case such offer is not accepted, the value of such crops and trees and the amount of such other damage shall be allowed for in awarding compensation for the land under the provisions herein contained,

(3-A) Before taking possession of any land under sub-section (1) or sub-section (2), the Collector shall, without prejudice to the provisions of sub-section (3),—

(a) tender payment of eight per centum of the compensation for such land as estimated by him to the persons interested entitled thereto, and

(b) pay it to them, unless prevented by some one or more of the contingencies mentioned in Section 31, sub-section (2),

and where the Collector is so prevented, the provisions of Section 31, sub-section (2), (except the second proviso thereto), shall apply as they apply to the payment of compensation under that section.

(3-B) The amount paid or deposited under sub-section (3-A), shall be taken into account for determining the amount of compensation required to be tendered under Section 31, and where the amount so paid or deposited exceeds the compensation awarded by the Collector under Section 11, the excess may, unless refunded within three months from the date of the Collector's award, be recovered as an arrear of land revenue.

(4) In the case of any land to which, in the opinion of the appropriate Government, the provisions of sub-section (1), or sub-section (2) are applicable, the appropriate Government may direct that the provisions of Section 5-A shall not apply, and, if it does so direct, a declaration may be made under Section 6 in respect of the land at any time after the date of the publication of the notification under Section 4, sub-section (1)."

Section 17 also makes it very clear that for exercising power under Section 17, the said action can be taken only after publication of notification under Section 4 and declaration under Section 6. In any case there is nothing on record to indicate that by applying urgency clause under Section 17, the subject land has been acquired. Thus, it is very clear that the acquisition of said land alleged by the Respondents is no acquisition in the eyes of law.

12. It is a well-settled salutary principle that if a statute provides for a thing to be done in a particular manner, then it has to be done in that manner and in no other manner ¹.

13. Article 300A of the Constitution of India provides that no person shall be deprived of his property save by authority of law.

14. The Supreme Court in ***Vidya Devi Vs. State of Himachal Pradesh and Others*** reported in ***(2020) 2 SCC 569*** was considering almost identical case. In that case, the respondent State took over the land of the appellant in 1967-68 for the construction of a major district road without taking recourse to acquisition proceedings, or following due process of law. The construction of the road was completed by 1975. In that case stand taken by the State Government was that the appellant or her predecessors had “orally” consented to the acquisition. In that context, the Supreme Court has observed that the stand taken is completely baseless and that there is complete lack of authority and legal sanction in compulsorily divesting the Appellant of her property by the State. It has been further held that in a democratic polity governed by the rule of law, the State could not have deprived a citizen of their property without the sanction of law. Reliance is placed on the judgment of this Court in **[Tukaram Kana Joshi & Ors. Vs. M.I.D.C. & Ors.](#)**

¹Chandra Kishore Jha v. Mahavir Prasad, (1999) 8 SCC 266

reported in (2013) 1 SCC 353, wherein it was held that the State must comply with the procedure for acquisition, requisition, or any other permissible statutory mode. The State being a welfare State governed by the rule of law cannot arrogate to itself a status beyond what is provided by the Constitution.

15. The Supreme Court in ***Vidya Devi*** (Supra) in paragraph Nos. 12.4 to 12.6, reiterated its earlier decisions, which read as under:

12.4 In ***N. Padmamma v. S. Ramakrishna Reddy (2008) 15 SCC 517***, this Court held that:

"21. If the right of property is a human right as also a constitutional right, the same cannot be taken away except in accordance with law. Article 300-A of the Constitution protects such right. The provisions of the Act seeking to divest such right, keeping in view of the provisions of Article 300-A of the Constitution of India, must be strictly construed."

(emphasis supplied)

12.5 In ***Delhi Airtech Services Pvt. Ltd. & Ors. v. State of U.P. & Ors. (2011) 9 SCC 354***, this Court recognized the right to property as a basic human right in the following words:

"30. *It is accepted in every jurisprudence and by different political thinkers that some amount of property right is an indispensable safeguard against tyranny and economic oppression of the Government. Jefferson was of the view that liberty cannot long subsist without the support of property. "Property must be secured, else liberty cannot subsist" was the opinion of John Adams.*

Indeed the view that *property itself is the seed bed which must be conserved if other constitutional values are to flourish is the consensus among political thinkers and jurists.*"

(emphasis supplied)

12.6 In [Jilubhai Nanbhai Khachar v. State of Gujarat \(2011\) 9 SCC 354](#), this Court held as follows :

"48. ...In other words, Article 300-A only limits the powers of the State that no person shall be deprived of his property save by authority of law. There has to be no deprivation without any sanction of law. Deprivation by any other mode is not acquisition or taking possession under Article 300-A. In other words, if there is no law, there is no deprivation."

(emphasis supplied)

The above observations of the Supreme Court are applicable to the present case.

16. The observations of the Supreme Court in ***Vidya Devi*** (Supra) in paragraph Nos. 12.10 and 12.11 are also applicable to the present case, which read as under :

12.10 This Court in [State of Haryana v. Mukesh Kumar](#) (2011) 10 SCC 404 held that the right to property is now considered to be not only a constitutional or statutory right, but also a human right. 8 (2013) 1 SCC 353. Human rights have been considered in the realm of individual rights such as right to shelter, livelihood, health, employment, etc. Human rights have gained a multi-faceted dimension.

12.11 We are surprised by the plea taken by the State before the High Court, that since it has been in continuous possession of the land for over 42 years, it would tantamount to "adverse"

possession. The State being a welfare State, cannot be permitted to take the plea of adverse possession, which allows a trespasser i.e. a person guilty of a tort, or even a crime, to gain legal title over such property for over 12 years. The State cannot be permitted to perfect its title over the land by invoking the doctrine of adverse possession to grab the property of its own citizens, as has been done in the present case.

17. The above observations of the Supreme Court are applicable to the present case.

18. It is significant to note that in view of the impugned order dated 20th November 2020, the Petitioner sought information under the Right to Information Act, 2005 and the Petitioner *inter alia* got the following information :

- (i) By letter dated 19th April 2021 of Public Information Officer @ Senior Clerk in the office of Dy. Collector (Land Acquisition) No.1, Sangli, the Petitioner was informed that the said subject land is not acquired by the said office (page 52).
- (ii) By letter dated 7th April 2021 of Public Information Officer @ Senior Clerk in the office of Dy. Collector (Land Acquisition) No.3, Sangli, it has been informed to the Petitioner that there is no record of the acquisition of the subject land by the said office (page-53).
- (iii) By letter dated 10th March 2021 of Public Information Officer @ Senior Clerk in the office of Dy. Collector (Land Acquisition) No.6, Sangli, it has been informed that the said subject land is not acquired by the said office (page 54).
- (iv) By letter dated 8th April 2021 of Public Information Officer @ Senior Clerk in the office of Dy. Collector (Land Acquisition) No.7, Sangli, it has been informed to the Petitioner that the said subject land is not acquired by the said office (page 55).

- (v) By letter dated 1st April 2021 of Public Information Officer @ Senior Clerk in the office of Dy. Collector (Land Acquisition) No.9, Sangli, it has been informed to the Petitioner that the said subject land is not acquired by the said office (page 56).
- (vi) Letter dated 3rd August 2021 of Dy. Divisional Water Conservation Officer, Zilla Parishad (Small Project) Division, Panchayat Samiti, Miraj stating that there is no record of payment of any compensation for subject land and no record of acquisition of the said land (page 57 & 58).

Thus, it is clear that the subject land is not acquired by the authorities as per the provisions of law.

19. In view of the above background, it is significant to note that notice dated 1st June 2019 (page 19-25) has been issued to the Petitioner by Respondent No.3 i.e., the Competent Authority, Land Acquisition Officer / SDO, Miraj under Sections 3G(1), 3G(2), 3H(2), 3H(3), 3E(1) and 3E(2) of the National Highways Act, 1956.

20. It is further significant to note that after receipt of objections under Section 3D of the National Highways Act, 1956, the earlier measurement plan prepared on 23rd July 2017 was cancelled and amended plan was issued on 30th July 2018. The chart of said correction has been annexed at page 24, which reads thus :

अ.क्र.	3D अधिसूचनेत समाविष्ट करावयाचे क्षेत्र		संयुक्त मोजणी अनुसार		वगळलेले क्षेत्र		निवाड्यात समाविष्ट करावयाचे क्षेत्र		अतिरिक्त संपादित होणारे क्षेत्र	
	गट नं.	क्षेत्रफळ	गट नं.	क्षेत्रफळ	गट नं.	क्षेत्रफळ	गट नं.	क्षेत्रफळ	गट नं.	क्षेत्रफळ
1	2	3	4	5	6	7	8	9	10	11
1	1572	396	1572/1	3200	0	0	1572	396	1572	2804
2	1573	3000	1573	3000	1573	0	1573	3000	0	0
3	1574	10100	1574	10100	1574	0	1574	10100	0	0
4	1575	6642	1575	10900	0	0	1575	6642	1575	4258

5	1576 ब	9600	1576 ब	9600	1576 ब	0	1576 ब	9600	0	0
6	1590	30	1590	30	1590	0	1590	30	0	0
7	1591	19800	1591	19800	1591	0	1591	19800	0	0

(Emphasis added)

The above chart is also part of the Award dated 19th November 2018 (page 25A27). Petitioner's land is mentioned at serial no.5. It is specifically mentioned in the said chart that land which is to be included in the notification to be issued under Section 3D of the National Highways Act, 1956 is bearing Survey No.1576/B, admeasuring 9,600 sq. meters. and the same is to be included in the award. Section 3D of the National Highways Act, 1956 is regarding declaration of acquisition.

21. There is another chart annexed to the said Award as Annexure 7. The relevant portion of page Nos. 25A60 and 25A61 is reproduced hereinbelow :

अ. क्र.	खातेदाराचे नाव	स.नं./ ग.नं.		3(D) प्रमाणे संपादीत होणारे क्षेत्र चौ.मी	संपादीत जमीनीचे युप	सदरच्या निवाड्यामध् ये समाविष्ट करावयाचे क्षेत्र (चौ.मी)	मुळ बाजार मुल्य प्रति चौ.मी रु पै	मुळ बाजार मुल्याप्रमाणे जमीनीचे मुल्य प्रति चौ.मी रु पै	गुणक	गुणक 1.50 नुसार येणारे मुल्य रु पै
		मूळ सर्वे नंबर	पो ट हि रसा							
1	2	3	4	5	6	7	8	9	10	11
1	...	...		...	..	...	..	..	..	...
5	1) गाव तलाव क्षेत्र 2) नितीन अनंतकुमार पाटील अन्य अधिकार 1) रत्नाकर बंक लि. 2) जयिहंद विकास सोसायटी मालगाव	1576 ब		9600	IV	9600	656	6297600	1.50	9446400

The said chart, at its serial No.5 again specifically *inter alia* mentions the

name of Petitioner as also the village tank is also specifically mentioned.

22. It is further significant to note that under Section 3G(1) of the National Highways Act, 1956, award was declared, titled as "final land acquisition award". In the said award, at serial No.5 of Schedule-1, *inter alia* mentions Survey Number of the Petitioner's land. Thus, the documentary evidence on record shows that Petitioner's land has been acquired under the provisions of the National Highways Act, 1956.

23. It is the submission of Mr. Vanarase, learned AGP and Mr. Deokar learned Counsel appearing for the Respondent No.5-Zilla Parishad that the said land was earlier acquired by the Tahsildar. However, as noted hereinabove, there is nothing on record to indicate that the subject land was acquired at any point of time by Tahsildar. In any case, for the reasons set out earlier and in view of the law laid down by the Supreme Court in ***Vidya Devi*** (Supra) the said alleged acquisition by Tahsildar, if any, is no acquisition in the eyes of law.

24. It is further submission of Mr. Vanarase, learned AGP and Mr. Deokar, learned Counsel appearing for Respondent No.5-Zilla Parishad that compensation amount received is regarding the entire Survey No.1576/B by SDO, and the Petitioner, if entitled to receive compensation, proportionate compensation is required to be paid to the Petitioner.

25. In the light of above discussion, writ petition is allowed by passing

following order :

:- O R D E R :-

(i) Action of the Respondents refusing to pay compensation to the Petitioner in respect of the subject land is hereby quashed and set aside. Resultantly, orders/letters dated 20th November 2020 (Exhibit- "C" / page 35) and 8th June 2021 (Exhibit-"K"/page 59) issued by the Competent Authority, Land Acquisition @ Sub Divisional Officer, Miraj Division, Miraj refusing to pay compensation to the Petitioner in respect of his land acquired out of the land bearing Survey No.1576/B/2 situated at village Malgaon, taluka Miraj, district Sangli are quashed and set aside.

(ii) Petitioner be paid compensation for acquisition of his land, however, the Respondents shall pay compensation to the Petitioner as per the statement of learned AGP and learned Counsel appearing for the Respondent No.5 as recorded in paragraph no.24.

26. Writ Petition is disposed of in above terms with no order as to costs.

[Pravin S. Patil, J.]

[Madhav J. Jamdar, J.]